

Poland

Office of Competition and Consumer Protection

As part of an EU-funded initiative, the Polish Competition Authority (UOKiK) developed ARBUZ, an AI-powered system based on supervised machine learning, between 2020 and 2022. This system was integrated into the organization's daily operations in early 2023.

ARBUZ operates on a core principle: it assesses the semantic similarity between segments of a contract under review and clauses that have been previously categorized by UOKiK as either abusive or non-abusive (safe). The system was trained using a structured database meticulously compiled by UOKiK employees, which included annotated excerpts from court rulings, decisions by the President of UOKiK, and 'soft calls'—informal requests made to entrepreneurs to cease using prohibited contract terms voluntarily.

The system analyzes standard contract terms, identifying potentially abusive sections by referencing verified clauses from the database. As it relies on supervised machine learning, the analysis of contract terms also serves to automatically update the original database.

In 2024, UOKiK released a 'White Paper Advancing Consumer Law Enforcement with Artificial Intelligence.' This document discusses the organizational, legal, and ethical aspects of creating and implementing AI-based systems within public consumer protection agencies. It also explores potential future applications and directions for the development of such technologies.

Dark Patterns

UOKiK has launched an EU-funded project 'Detecting and combating dark patterns with Artificial Intelligence' to develop a methodology for conducting proceedings on dark patterns and to explore opportunities for deploying AI in consumer protection. This includes the development of a Proof of Concept for an AI tool capable of detecting dark patterns, as well as research into the latest trends in AI and machine learning.

As part of this project, in 2023, websites of online stores and other service providers were screened, and sectors with the highest occurrence of dark patterns were identified for further analysis.

Preliminary proceedings will be initiated based on findings from open-source intelligence, which will include neuromarketing tests designed to study neurobiological human reactions to dark patterns.

During the course of administrative proceedings, UOKiK plans to organize an IT analysis of websites conducted by external experts and to conduct consumer surveys about online purchasing experiences and the influence of specific dark patterns.